Input for Thematic Report on Enforced Disappearances and Memorialization

Submitted to: Working Group on Enforced or Involuntary Disappearances (WGEID)

Purpose: Contribution to the thematic report to be presented to the Human Rights Council (September 2026) and the General Assembly (October 2026)

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Executive Summary

Enforced disappearance fractures families and communities through uncertainty, denial, and fear. Memorialization—when grounded in law, participation, and protection—counters erasure, restores dignity, advances the right to truth, and contributes to guarantees of non-recurrence. This submission is grounded in the mandate and jurisprudence of the Working Group on Enforced or Involuntary Disappearances (WGEID), including its prior work on the right to truth and reparation. It outlines (1) States' legal obligations related to memorialization in cases of enforced disappearance; (2) practical, inclusive approaches led by States, victims, and civil society; and (3) challenges, threats, and protection mechanisms necessary to safeguard commemorative efforts. It emphasizes that memorialization is not discretionary symbolism but a continuing legal obligation derived from international human rights law, particularly where impunity, denial, or contested narratives persist.

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1. Legal Obligations of States

1.1 Sources and Content of Obligations

States' obligations to memorialize enforced disappearances arise from intersecting duties under international law, including the **International Convention for the Protection of All Persons from Enforced Disappearance**, international human rights treaties, and authoritative interpretations by UN treaty bodies and special procedures. These obligations include:

- **The right to truth** (individual and collective), requiring States to acknowledge violations, preserve memory, and ensure public access to information;
- **The duty to provide reparation**, where satisfaction and guarantees of non-recurrence encompass memorials, commemorations, archives, and public acknowledgment;

- **The obligation to investigate, prevent, and cease enforced disappearance**, which memorialization supports by countering denialism, historical revisionism, and repetition.

Enforced disappearance is recognized as a **continuing violation** until the fate and whereabouts of the disappeared are clarified. Accordingly, memorialization obligations arise upon the occurrence of disappearance and **persist open-endedly** until truth, justice, and reparation are fully realized.

1.2 Positive Duties and Limits on Interference

States bear **positive duties** to:

- Enable and facilitate memorialization initiatives, including access to sites, archives, and public spaces;
- Protect families, communities, human rights defenders, and artists from retaliation linked to commemorative acts;
- Ensure non-discriminatory participation, particularly in contexts of ongoing impunity or contested narratives.

Memorialization falls within protected rights to **freedom of expression, peaceful assembly, cultural participation, and the right to truth**. States must therefore **refrain from interference**, censorship, criminalization, or administrative obstruction of peaceful memorialization. Any restriction must meet strict requirements of legality, necessity, and proportionality and must never serve denial, intimidation, or historical erasure.

1.3 Protection of Civil Society–Led Memorialization

International and domestic legal frameworks should explicitly safeguard civil society–led memorialization through:

- Recognition of memorialization as protected expression and assembly;
- Legal status and protection for memory sites, archives, and commemorative practices;
- Effective remedies against vandalism, destruction, misappropriation, or erasure of memorials.

The absence of legal recognition or protection may itself constitute **indirect State interference**, particularly where it enables attacks, neglect, or administrative suppression without remedy.

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2. Practical and Inclusive Approaches

2.1 Good Practices

Effective memorialization initiatives share common features:

- **Victim-centered design** led by families of disappeared persons;
- **Plural forms** (physical memorials, digital archives, days of remembrance, educational curricula, art, and oral histories);
- **Linkage to truth-seeking** (archives, forensic work, naming practices);
- **Sustainability** through legal protection, public funding, and independent oversight.

2.2 Individual and Collective Dimensions

Good practice balances:

- **Individual remembrance** (naming, biographies, personal artifacts);
- **Collective memory** (public narratives, national days, museums);
- Avoidance of anonymization while situating each disappearance within systemic patterns.

2.3 Inclusive Participation

Inclusive memorialization requires:

- Free, prior, and informed consent of families of disappeared persons;
- Targeted outreach and resourcing for marginalized groups, Indigenous Peoples, children of the disappeared, and persons with disabilities;
- Gender-sensitive approaches recognizing the disproportionate impacts on women and caregivers;
- Multilingual, accessible, and trauma-informed formats.

2.4 Collaboration Models

Collaboration Models Successful collaboration is enabled by:

- Co-governance structures with families and civil society;
- Independent advisory councils;
- Transparent funding and decision-making;
- Clear separation between memorialization and political messaging.

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3. Challenges, Threats, and Protection

3.1 Documented Threats

Common threats include:

- Harassment, surveillance, smear campaigns, digital attacks, and legal intimidation of families, defenders, and memorial practitioners;
- Vandalism, destruction, or appropriation of memorials and memory sites;

- Administrative barriers such as permit denials, zoning restrictions, or denial of archive access;
- Narrative capture, denial, or revisionism by State or non-State actors.

Such backlash frequently constitutes **State denial** and may amount to a continuation of the enforced disappearance itself, violating the rights to truth, expression, assembly, and cultural participation. Reprisals linked to memorialization should be systematically documented under UN anti-reprisal frameworks.

3.2 Protection Mechanisms

Effective protections include:

- Specific criminal and civil remedies against attacks on memorials and intimidation of participants;
- Rapid response and protective measures for at-risk families and defenders;
- Independent oversight bodies, ombudspersons, and where necessary, independent prosecutorial or investigative authorities;
- Preservation orders and legal safeguards for sites, archives, and digital memorials.

Ineffective approaches include discretionary permit regimes, politicized oversight, and under-enforcement where State actors may be implicated.

3.3 Role of UN and Regional Mechanisms

UN and regional human rights mechanisms can:

- Issue urgent appeals and communications concerning threats, reprisals, or destruction of memorials;
- Develop guidance, indicators, and best practices on memorialization as reparation and prevention;
- Support technical assistance for inclusive, victim-led memorial processes;
- Monitor and report on reprisals connected to commemorative activities, including digital and transnational contexts.

Recommendations

1. Affirm memorialization as a **continuing legal obligation** intrinsically linked to the right to truth, reparation, and guarantees of non-recurrence.
2. Require States to adopt **legal frameworks** protecting civil society–led memorialization, memory sites, and digital archives.
3. Establish **minimum standards** for inclusive, victim-led participation, recognizing families as rights-holders.

4. Recognize and address **suppression of memorialization and backlash** as manifestations of denial and ongoing violations.
5. Strengthen **UN monitoring, early warning, and protection mechanisms** for families and defenders engaged in memorialization.

Closing

Memorialization is an act of justice, not charity or symbolism. When protected and inclusive, it restores dignity, resists denial, and anchors guarantees of non-recurrence. Families of disappeared persons are **rights-holders**, not stakeholders. The Working Group's study is a vital opportunity to clarify State obligations and elevate practices that place those most affected at the center of remembrance.

End of submission.